



File No.: EXP202316254

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 30, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against LA VANGUARDIA EDICIONES, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202316254 (PS/00510/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 09/18/23, A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity, LA VANGUARDIA EDICIONES, S.L., with CIF: B61475257, owner of the website, <https://www.lavanguardia.com> (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated in the complaint concern that when visiting the website in question, both first-party and third-party cookies that are not necessary are installed despite rejecting them. It is also indicated that there should be a mechanism on the website that delays their installation.

SECOND: On 01/08/24, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the aforementioned websites, obtained through the "inspect → application" tool of the Google Chrome browser and after clearing the browser's cache and cookies, and after forcing the browser to download the latest version of the webpage hosted on the remote server:

1.- Regarding the use of cookies before the user gives their consent:

Upon entering the website <https://www.lavanguardia.com> for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the page, it is verified that the following cookies are used:

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a).- Technical nature cookies:

Cookies

Domain

Description

_dc_gtm_UA-999736-3

.lavanguardia.com

This cookie is associated with sites that use Google Tag Manager to load other scripts and codes on a page. When used, it can be considered strictly necessary as, without it, other scripts may not function correctly.

_dc_gtm_UA-999736-60

.lavanguardia.com

This cookie is associated with sites that use Google Tag Manager to load other scripts and codes on a page. When used, it can be considered strictly necessary as, without it, other scripts may not function correctly.

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b).- Cookies detected from Google Analytics: They allow quantifying the number of visits and traffic sources to evaluate the performance of the site. They help to know which pages are the most or least visited and how visitors navigate the site.

Cookies

Domain

Description

_gid

.lavanguardia.com

This cookie is set by Google Analytics to count and track the pages viewed.

_ga

.lavanguardia.com

This cookie name is associated with Google Universal Analytics and is used to distinguish users by assigning a randomly generated number as a client identifier. It is included in each page request of a site and is used to calculate visitor, session, and campaign data for the site's analytical reports.

_ga_CHCHK3Q3W4

.lavanguardia.com

Google Analytics uses this cookie to control the session status.

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c).- Advertising or targeting cookies: These are cookies specifically designed to gather information on the viewing of visited pages and to send advertising to the user based on the topics they have visited or are interested in:

Cookies

Domain

Description

YSC

.youtube.com

YouTube sets this cookie to track views of embedded videos on the website.

VISITOR_INFO1_LIVE

.youtube.com

YouTube sets this cookie to track user preferences regarding embedded YouTube videos on sites.

test_cookie

.doubleclick.net

This cookie is set by DoubleClick (which is owned by Google) to determine if the visitor's web browser supports cookies.

_gcl_au

.lavanguardia.com

This cookie is used by Google AdSense to experiment with the efficiency of advertising on websites that use its services.

customization_id

.twitter.com

This cookie collects information about how the end user uses the website and any advertising they have seen before visiting the site.

IDE

.doubleclick.net

This cookie is set by DoubleClick and provides information on how the end user uses the website and any advertising they have seen before visiting that website.

e).- Cookies detected but whose purpose could not be identified:

Cookies

Domain

Description

_ttp

.tiktok.com

Third-party cookie

_tt_enable_cookie

.lavanguardia.com

sijai

.wemass.io
Third-party cookie
didomi_token
.lavanguardia.com
_ttp
.lavanguardia.com
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cookies
Domain
Description
sui_1pc
www.lavanguardia.com
sui_3pc
.sensic.net
Third-party cookie
muc_ads
.t.co
Third-party cookie.

It has also been detected that, after a period of accessing the main page of the website without taking any action on it, it begins to use new third-party cookies that are not technical or necessary.

2.- About the cookie information banner on the first layer:

Upon entering the website for the first time, a cookie information banner appears with the following message:

We inform you about the use we make of the data we collect while you browse our pages. You can change your preferences at any time by accessing the Cookie Settings link found at the bottom of our main page.

With your consent, we and our 874 partners use cookies or similar technologies to store, access, and process personal data, such as your visits to this website, IP addresses, and cookie identifiers.

Some partners do not ask for your consent to process your data and rely on their legitimate commercial interest. You can withdraw your consent or object to data processing based on legitimate interest at any time by clicking on "Get more information" or in the privacy policy of this website.

We and our partners carry out the following data processing:

Store information on a device and/or access it, precise geographic location data and identification through device analysis, personalized advertising and content, measurement of advertising and content, audience research and service development, use of technical or preference cookies

<>

<>

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If you choose to accept all cookies by clicking on the <> option, it is verified that the website continues to use the cookies detected at the beginning of the visit, before consent was given.

If you click on the <> option, the website displays a control panel where you can accept or reject the different groups of cookies:

If you wish to reject all cookies, by clicking on the <> option, and then clicking on the <> option, it is verified that the website continues to use the cookies detected at the beginning of the navigation.

3rd.- About the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link available at the bottom of the main page, the website redirects the user to a new page <https://www.lavanguardia.com/cookies-privacy-LV-popup.html> where information is provided about: what cookies are; what the information collected through cookies is used for, what types of cookies exist, and how cookies can be managed through the browsers installed on the terminal equipment.

4th.- About the possibility of modifying the consent given regarding cookies at any time during web browsing.

If the user has given initial consent for the website to use cookies that are not technical or necessary and wishes, at a certain moment, to modify that consent, there is the possibility to access the cookie control panel through the <> link available at the bottom of the website.

If you click on this option, the cookie control panel appears, where the groups of cookies are marked in the "ON" option:

If you wish to reject all cookies that are being used, by clicking on the <> option and then clicking on the <> option, it is verified that the website continues to use both its own and third-party cookies that are not technical or strictly necessary, installed when consent was given.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II

a).- Regarding the installation of cookies on the terminal equipment prior to the user's consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing. This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that the obligations established in Article 22.2 of the LSSI would not apply to those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the cookies exempted would be user input cookies (those used to fill out forms or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

Regarding cookies used for the purpose of obtaining traffic or performance statistics, they may be exempt from consent under certain conditions. To be limited to what is strictly necessary for the provision of the service and, therefore, be exempt from consent in accordance with Article 22.2 of the LSSI, these...

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Cookies, or similar technologies, must have a strictly limited purpose to the exclusive measurement of the audience of the site or application. This processing must be carried out exclusively on behalf of the publisher and used to produce anonymous statistical data only.

Conversely, to be exempt from consent, these cookies or similar technologies must not result in the data being matched with other processing operations or in the data being transmitted to third parties. Additionally, they must not allow the aggregated tracking of the navigation of the person using different applications or browsing different websites.

Therefore, any solution that uses the same identifier across multiple sites (for example, through cookies placed on a third-party domain loaded by multiple sites) to cross-reference, duplicate, or measure a unified reach rate of content is excluded.

Some analytics and audience measurement services, implemented by the publisher itself or by providers, do not fall within the scope of the exemption. This occurs, in particular, when they state that they reuse the data for other purposes, as is the case with various audience measurement offerings available in the market.

Therefore, and in general, the AEPD considers that for the proper management of a website, only the following measurements are strictly necessary:

- Audience measurement, page by page;
- The list of pages from which a link has been followed to request the current page (sometimes called "referrer"), whether internal or external to the site, by page and aggregated daily;
- Determination of the type of device, browser, and screen size of visitors, by page and aggregated daily;
- Page load time statistics, by page and aggregated hourly;
- Statistics on the time spent on each page, bounce rate, scroll depth, by page and aggregated daily;
- Statistics on user actions (clicks, selections), by page and aggregated daily;
- Statistics on the geographical area of origin of requests, by page and aggregated daily.

Therefore, any other processing of the data beyond these listings by both the publisher and the provider must have the consent of the data subject to be considered lawful.

Regarding Google Analytics Cookies, it is noteworthy that in the "Google Analytics Terms of Service," which are established between Google Ireland Limited and the entity that formalizes the Contract for the use of analytical cookies, it is stated in the "Privacy" section that the contractor "must disclose the use of Google Analytics and how this Service collects and processes data.

This can be done by prominently displaying a link to the page "How Google uses information from sites or apps that use our services," which can be found at www.google.com/policies/privacy/partners or any other URL that Google may provide at the time.

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"7. Privacy

You must not send hashed or otherwise encrypted information to Google that Google may consider personally identifiable information or use it as such, nor should you allow a third party to do so or assist them in doing so, except as permitted by the policies or terms of the Google Analytics features made available to you and in accordance with them, and only if the information sent to Google in connection with that Google Analytics feature has been hashed according to industry standards. You must have an appropriate Privacy Policy and comply with it. You must also comply with all applicable laws, policies, and regulations related to the collection of information from Users. Additionally, you must publish a Privacy Policy that notifies users of the use of cookies, mobile device identifiers (for example, the Advertising Identifier for Android or the Advertising Identifier for iOS), or similar technology that you use to collect data. Furthermore, you must disclose the use of Google Analytics and how this Service collects and processes data. You can do this by prominently displaying a link to the page "How Google Uses Information from Sites or Apps That Use Our Services," which can be found at www.google.com/policies/privacy/partners/ or any other URL that Google may provide from time to time. You must take commercially reasonable steps to ensure that Users receive complete and clear information about the storage of cookies and access to them or any other information on Users' devices, and that they provide their consent in this regard when such activity occurs in connection with the Service and when the law requires providing such information and obtaining such consent."

Through the aforementioned link, the following information is accessed:

Google's advertising services are testing new ways to publish and measure digital advertising that better protect users' privacy online through the Privacy Sandbox initiative on Chrome and Android. Users who have enabled the relevant Privacy Sandbox settings on Chrome or Android will be able to see relevant ads from Google's advertising services based on Topics or Protected Audience data stored in their browser or mobile device. Google's advertising services may also measure ad performance with attribution reporting data stored in their browser or mobile device. More information about Privacy Sandbox

HOW GOOGLE USES INFORMATION FROM WEBSITES OR APPS THAT USE OUR SERVICES

A large number of websites and applications use Google services to enhance their content and offer it for free. By integrating our services, these websites and applications share information with Google.

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For example, when you access a website that uses advertising services such as AdSense, which includes analytics tools like Google Analytics or embeds video content from YouTube, the web browser automatically sends certain information to Google. The data we receive includes the URL of the page you accessed and its IP address, among others. We may also place cookies in your browser or read those that are already stored in it. Applications that use Google advertising services also share information with us, such as the name of the application and a unique identifier for advertising.

Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on the websites and applications of our partners. Please refer to the privacy policy for more information on how we handle data for each of these purposes and the advertising page for more information about Google ads, how your information is used in the context of advertising, and how long Google retains this information.

Our Privacy Policy explains the legal grounds on which we rely at Google to process our users' information. For example, we may process it with your consent or to pursue legitimate interests such as offering, maintaining, and improving our services with the aim of meeting users' needs.

Sometimes, when we process information that a website or application has shared with us, that website or application first asks users if they consent to us processing their information. For example, a banner may appear on a website asking users if they consent to Google processing the data that the

website collects. In such cases, we will respect the purposes described in the consent given to the corresponding website or application, rather than relying on the legal grounds stipulated in our Privacy Policy. If any user wishes to modify or withdraw their consent, they must do so from the website or application in question. (...)

Therefore, Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on the websites and applications of our partners. Thus, these cookies are not exempt as the information is used for other purposes.

In this case, checks conducted on the websites revealed that upon first entering them, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on them, both first-party and third-party cookies that were not of a technical nature were used, such as the following Google Analytics Cookies and first-party and third-party cookies whose purpose could not be identified:

- Cookies detected from Google Analytics:

- o _gid;

- o _ga;

- o _ga_CHCHK3Q3W4

- Advertising or targeting cookies:

- o YSC;

- o VISITOR_INFO1_LIVE;

- o test_cookie;

- o _gcl_a;

- o personalization_id;

- o IDE

- Cookies detected but whose purpose could not be identified:

- o _ttp (domain of ".tiktok.com", third-party cookie);

- o _tt_enable_cookie (domain of ".lavanguardia.com");

- o Sijai (domain of ".wemass.io", third-party cookie);

- o didomi_token (domain of ".lavanguardia.com");

- o _ttp (domain of ".lavanguardia.com");

- o sui_1pc (domain of ".lavanguardia.com");

- o sui_3pc (domain of ".sensic.net", third-party cookie);

- o muc_ads (domain of ".t.co", third-party cookie).

Note that it has also been detected that after a period of time accessing the main page of the website without taking any action on it, it begins to use new third-party cookies that were not of a technical nature.

b).- Regarding the cookie information banner present on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the publisher responsible for the website, in case their identifying data does not appear in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party, without the need to identify them in this first layer.

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Additionally, it must include generic information about the type of data that will be collected and used in the event that user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with the warning, where applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must contain a clearly visible link

directed to a second layer of information regarding the use of cookies. This same link may be used to lead the user to the cookie settings panel, provided that access to the settings panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, it is noted that the existing cookie information banner on the first layer of the website identifies the purposes for which the cookies will be used and whether they are first-party or third-party cookies, and informs about the type of data that will be collected.

c).- Regarding consent to the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's consent explicitly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or browsing the website will not be considered a clear affirmative action in any circumstance and will not imply the provision of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that settings panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for the configuration of cookies, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher

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If the user opts for this option, they must also provide, in any case, a mechanism that allows for the rejection of the use of cookies and/or to do so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows for easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it was verified that if the user did not grant consent to use cookies that were not technical or necessary, the website continued to use its own cookies and third-party cookies that were not technical or strictly necessary.

d).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration

system.

In this case, if the user has granted their consent for the use of cookies that are not technical or necessary through the existing option in the initial information banner or through consent granted in the control panel, and wishes to modify it, there is the possibility to access the control panel again through the link available at the bottom of the website.

However, if they now wish to reject all cookies by clicking on the "Reject all" option and then on the "Save my Preferences" option, it is verified that the website continues to use its own cookies and third-party cookies installed when consent was granted.

III

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website,

<https://www.lavanguardia.com>, namely, the use of its own and third-party cookies that are not technical or necessary even though the user has not granted their consent; the impossibility of rejecting them or managing them in a granular manner; and the impossibility of withdrawing consent once granted, could constitute an infringement of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of a service of the information society expressly requested by the recipient."

IV.

Proposal and Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using storage and data retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions", taking into account the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or a self-regulatory advertising system applicable regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

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Following the evidence obtained, and without prejudice to the outcome of the investigation, it is considered appropriate to adjust the sanction to be imposed in accordance with the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (section a). This expression should be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court dated 12/11/07 in Case No. 351/2006,

corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

In accordance with these criteria, and without prejudice to the outcome of the investigation of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by it, an initial sanction of 10,000 euros (ten thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity LA VANGUARDIA EDICIONES, S.L., with CIF: B61475257, owner of the website, <https://www.lavanguardia.com> for the violation of Article 22.2 of the LSSI, regarding the "Cookie Policy" of said pages.

SECOND: TO APPOINT: as Instructor R.R.R., and Secretary, if applicable, S.S.S., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to the outcome of the investigation of this file, 10,000 euros (ten thousand euros).

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity LA VANGUARDIA EDICIONES, S.L., granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that should be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, concluding the procedure with the imposition of this sanction. Similarly, you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000 euros (Six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. If you choose to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this

document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the proceedings. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

SECOND: On February 13, 2024, the respondent has proceeded to pay the sanction in the amount of 8,000 euros, making use of one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been substantiated.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

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II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the

termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202316254, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LA VANGUARDIA EDICIONES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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937-17112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

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